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LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Wednesday – August 12, 2026

Calendar No.

PROCEEDINGS

Lynn

Chia Tien, et al. v. Jaguar Land Rover North America, LLC, et al.

26TRCV01623

1.

Jaguar Land Rover

North America, LLC, et al.'s Demurrer to Complaint

2. Jaguar Land Rover North America, LLC, et al.'s Motion
to Strike Portions of Complaint

TENTATIVE RULING

Jaguar Land Rover North

America, LLC, et al.'s Demurrer to

Complaint is sustained with 20 days leave to amend.

Jaguar Land Rover North America, LLC, et al.'s Motion
to Strike Portions of Complaint is granted with 20 days leave to amend.

Background

Plaintiffs filed the Complaint on May 5, 2026.

Plaintiffs allege the following facts. This is an action under the Song-Beverly Act regarding a 2025 Land Rover Range Rover against Jaguar Land Rover North America, LLC ("JLRNA"). Plaintiffs also alleges a fourth cause of action for Negligent Repair against repair facility Jaguar Land Rover South Bay.

Meet and Confer

Defendant filed meet and confer declarations in
sufficient compliance with CCP §§ 430.41 and 435.5. (Decls., Bryan Roth).

Request for Judicial Notice

Plaintiff's request for judicial notice is granted.

Demurrer

A demurrer tests the sufficiency of a complaint as a matter of law and raises only questions of law. (Schmidt v. Foundation Health (1995) 35 Cal.App.4th 1702, 1706.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

The Court may not consider contentions, deductions, or conclusions of fact or law. (Moore v. Conliffe (1994) 7 Cal.App.4th 634, 638.) Because a demurrer tests the legal sufficiency of a complaint, the plaintiff must show that the complaint alleges facts sufficient to establish every element of each cause of action. (Rakestraw v. California Physicians Service (2000) 81 Cal.App.4th 39, 43.)

Where the complaint fails to state facts sufficient to constitute a cause of action, courts should sustain the demurrer. (C.C.P., § 430.10(e); Zelig v. County of

Los Angeles (2002) 27 Cal.App.4th 1112, 1126.)

Sufficient facts are the essential facts of the case

"with reasonable precision and with particularity sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of action." (Gressley v. Williams

(1961) 193 Cal.App.2d 636, 643-644.)

"Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer."

(Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609–610.) Under Code Civil Procedure §

430.10(f), a demurrer may also be sustained if a complaint is "uncertain." Uncertainty exists where a complaint's factual allegations are so confusing they do not sufficiently apprise a defendant of the issues it is being asked to meet. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.)

Fourth Cause of Action for Negligent Repair

Defendants' demurrer to the fourth

cause of action is sustained with 20 days leave to amend. Plaintiffs fail to state sufficient facts to state a cause of action.

"To state a cause of action for negligence, a plaintiff must allege (1) the defendant owed the plaintiff a duty of care, (2) the defendant breached that duty, and (3) the breach proximately caused the plaintiff's damages or injuries." Lueras v. BAC Home Loans Servicing, LP (2013) 221 Cal.App.4th 49, 62

"[T]he economic loss rule provides: [W]here a purchaser's expectations in a sale are frustrated because the product he bought is not working properly, his remedy is said to be in contract alone, for he has suffered only 'economic' losses. This doctrine hinges on a distinction drawn between transactions involving the sale of goods for commercial purposes where economic expectations are protected by commercial and contract law, and those involving the sale of defective products to individual consumers who are injured in a manner which has traditionally been remedied by resort to the law of torts. The economic loss rule requires a purchaser to recover in contract for purely economic loss due to disappointed expectations, unless he can demonstrate harm above and beyond a broken contractual promise. Quite simply, the economic loss rule prevent[s] the law of contract and the law of tort from

dissolving one into the other.” Robinson Helicopter Co., Inc. v. Dana Corp. (2004) 34 Cal.4th 979, 988 (internal citations and quotations omitted). “[C]onduct amounting to a breach of contract becomes tortious only when it also violates a duty independent of the contract arising from principles of tort law. An omission to perform a contract obligation is never a tort, unless that omission is also an omission of a legal duty.” Erlich v. Menezes (1999) 21 Cal.4th 543, 551 (internal citations and quotations omitted)

California courts have recognize an exception to the economic loss rule where the contract is for services and not goods. N. Am. Chem. Co. v. Superior Court (1997) 59 Cal.App.4th 764, 781. A negligent failure to perform a contractual duty may support both a breach of contract and a tort. Id. “[T]he critical issue to be determined before allowing recovery of an economic loss is the foreseeability of the risk of that loss flowing from a defendant’s negligent conduct. In cases involving the negligent performance of services, it would seem to matter little whether that foreseeability is established, at least in part, by a contractual relationship. It is the foreseeability of the economic loss resulting from the defendant’s conduct, not the plaintiff’s inability to contractually anticipate and provide for such loss, which serves as the foundation for imposition of liability.” Id. at 784.

However, cases decided after N. American Chemical such as, Erlich v. Menezes (1999) 21 Cal.4th 543 and Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905 appeared to limit the exception noted above to contexts involving a special relationship between the parties. Here, no special relationship as to the sole Defendant named in this cause of action Carwell, LLC dba Jaguar Land Rover South Bay has been pled.

The Court notes that the first through fourth causes of action against Jaguar Land Rover North America are premised upon a contractual relationship. However, no contractual relationship is alleged in the fifth cause of action which is only alleged against Jaguar Land Rover South Bay. In fact, Plaintiffs specifically allege that the claim against JLRSB is not based on a contractual relationship between JLRNA. (Complaint, ¶ 6).

Thus, Plaintiffs have not alleged facts to demonstrate a duty of care that was owed by Defendant Jaguar Land Rover South Bay to Plaintiffs. In the opposition, Plaintiffs argue that the duty does not arise from a contract. But, this allegation appears to directly contradict the other

allegations specifically referencing that JLRSB was the assigned service facility for a party JLRNA to which remedies pursuant to contractual warranties are being pursued. Thus, to that extent, Plaintiffs failed to articulate the existence of a duty of care stemming from the contract which is separate from a contractual duty. However, if a duty of care existed separate and apart from any contract, then, Plaintiffs must allege facts to demonstrate how such a duty arose. In this scenario, Plaintiffs must articulate a duty of care owed to them by Defendant that would have been separate and apart from a contractual duty.

Plaintiffs argue that the “component exception” articulated in *Jimenez v. Superior Court* (2002) 29 Cal.4th 473, 483-84 should be applied. The exception applies when a manufacturer places a defective product into the marketplace. Here, however, the claims against JLRSB does not involve the manufacture and distribution of a defective product.

In addition, Plaintiffs merely set forth a conclusion with respect to damages as the Complaint does not allege or reveal that Plaintiffs have any economic damages since Plaintiffs specifically alleged the existence of a warranty. While negligence generally does not require specific pleading, here, more than a simple conclusion is warranted since the first three causes of action appear to demonstrate the existence of a warranty that may perhaps show that Plaintiff did not suffer economic damages.

Thus, Defendants’ demurrer to the third cause of action is sustained with 20 days leave to amend.

Motion to
Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading.

CCP § 436(a). The court may also

strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. CCP § 436(b).

The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. CCP § 436.

The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. CCP § 437.

Defendants move to strike the following allegations from Plaintiffs' Complaint.

"1. Paragraph 26 of the Complaint, alleging entitlement to civil penalties under Code of Civil Procedure section 871.24, subdivision (e)(1); and Prayer for Relief, Item 6, requesting civil penalties under Civil Code section 1794, subdivision (c)." (Notice of Motion, p. 1, lines 7-9).

Code Civ. Proc., § 871.24 states:

"(a) At least 30 days prior to the commencement of an action seeking civil penalties under subdivision (c) of Section 1794 of the Civil Code, the consumer shall do all of the following:

(1) Notify the manufacturer of the consumer's name, the accurate Vehicle Identification Number ("VIN") of the motor vehicle, and a brief summary of the repair history and problems with the motor vehicle.

(2) Demand that the manufacturer repurchase or replace the motor vehicle.

(b) Minor deviations in the notice submitted pursuant to subdivision (a) shall not disqualify consumers from seeking civil penalties.

(c) At the time that the notice submitted pursuant to subdivision (a) is sent, the consumer shall have possession of the motor vehicle.

(d) The notice required by subdivision (a) shall be in writing and shall be sent either by email to the email address prominently displayed on the manufacturer's website for this purpose or by certified or registered mail, return receipt requested, to the address provided by the manufacturer in the owner's manual or warranty booklet. The notice information on the manufacturer's website, owner's manual, and warranty booklet shall be provided in both English and Spanish.

(e)(1) A request for or action seeking civil penalties under subdivision (c) of Section 1794 of the Civil Code shall not be allowed or maintained if both of the following conditions are present:

(A) Within 30 days after receipt of the notice, the manufacturer makes an offer of restitution or replacement of the motor vehicle for the amount provided by subdivision (d) of Section 1793.2 of the Civil Code and Section 871.27, plus reasonable attorney's fees and costs, if the consumer is represented by an attorney.

(B) The motor vehicle replacement or restitution is completed within 60 days from the date of receipt of the original notice.

(2) The consumer shall comply in good faith with reasonable requests from the manufacturer for documentation required to complete the requested restitution or replacement of the motor vehicle.

(f) A prelitigation dispute as to attorney's fees and costs shall be resolved by neutral, binding arbitration. A dispute as to the amount of attorney's fees and costs shall not, by itself, be a sufficient basis to show that the manufacturer's offer is out of compliance with this section.

(g) The consumer shall maintain possession of the motor vehicle for at least 30 days after the manufacturer's receipt of written notice seeking restitution or replacement.

(1) If the manufacturer does not offer restitution or replacement of the motor vehicle within 30 days of receiving the consumer's notice, the consumer shall be permitted to sell their motor vehicle and seek remedies, including, but not limited to, civil penalties under subdivision (c) of Section 1794 of the Civil Code.

(2) If the manufacturer offers restitution or replacement of the motor vehicle, the consumer shall maintain possession of the motor vehicle for the full 60 days after the manufacturer's receipt of the consumer's notice.

(h) An action seeking restitution or replacement under Section 871.20 may be commenced without compliance with subdivision (a). In that event, the consumer shall have possession of the motor vehicle at the time of the filing of the complaint, and shall not seek civil penalties, whether by amendment of the complaint or otherwise. If, however, notice is provided pursuant to subdivision (a) and the manufacturer fails to comply with their

obligations under subdivision (e), the consumer may commence an action for restitution or replacement, including, but not limited to, civil penalties under subdivision (c) of Section 1794 of the Civil Code.

(i) If a consumer sells their vehicle as authorized by subdivision (g), the consumer may not seek civil penalties under subdivision (c) of Section 1794 of the Civil Code unless the consumer provided to the prospective buyer or recipient of the vehicle, prior to the sale, written notice of the basis for the consumer's request for restitution or replacement from the manufacturer and of any pending action described in subdivision (a) of Section 871.20.

(j) A consumer shall act in good faith in order to comply with this section.

(k) This section shall become operative on July 1, 2025."

Defendant argues that the facts alleging compliance with this requirement are conclusory as Plaintiffs simply alleged that they complied with this statute. Plaintiffs argue that CCP § 459 allows them to plead compliance generally.

Code Civ. Proc., § 459 states, in relevant part:

"In pleading the performance of conditions precedent under a statute or an ordinance of a county or municipal corporation, or of a right derived therefrom, it is not necessary to state the facts showing such performance, but it may be stated generally that the party duly performed all the conditions on his part required thereby; if such allegations be controverted the party pleading must establish on the trial the facts showing such performance."

Paragraph 26 of the Complaint states as follows:

"Plaintiffs complied with Code of Civil Procedure section 871.24, subd. (a). Defendant FMC failed to comply with Code of Civil Procedure section 871.24, subd. (e)(1)(A). Plaintiffs seek and are entitled to all recoverable damages, including civil penalties under Civil Code section 1794, subd. (c), per Code of Civil Procedure section 871.24, subd. (e)(1)."

(Complaint, ¶ 26).

Here, the allegation is simply a sheer conclusion without any facts – even the minimal general facts that Plaintiffs contend is all that is required. In addition, the allegation is completely nonsensical as it refers to a Defendant “FMC” which does not appear to even be a party to this action. Finally, the Court did not consider the declaration of Plaintiffs’ counsel as it constitutes factual matters outside the scope of the pleadings.

Defendants’ motion to strike is granted with 20 days leave to amend.

Defendants are ordered to give notice of this ruling.